



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 10 judgments on Tuesday 11 February 2020 and 10 judgments and / or decisions on Thursday 13 February 2020.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 11 February 2020

Šeiko v. Lithuania (application no. 82968/17)

The applicant, Galina Šeiko, is a Lithuanian national who was born in 1950 and lives in Kretinga (Lithuania).

The case concerns her complaint that damages she had to pay were taken from her old age pension.

In December 2014 the Kretinga Region District Court gave the applicant a suspended prison sentence of two and a half years and ordered her to pay approximately 5,900 euros (EUR) in damages to the family who lived in the apartment above her own after she was found guilty of harassing them. The domestic courts dismissed her appeals against that decision.

In order to cover the compensation bailiffs seized a small plot of land and arranged with the social security department for payments of sums ranging from EUR 20 to EUR 24, to be withheld from her monthly pension, which amounted to about EUR 123, between January 2017 and March 2019.

Relying in particular on Article 3 (protection against inhuman treatment) of the European Convention on Human Rights, the applicant complains that reducing her pension by about a fifth in order to pay the damages was unlawful and caused her considerable hardship.

Galea and Pavia v. Malta (nos. 77209/16 and 77225/16)

The applicants, Michael Galea and Edward Pavia, are Maltese nationals who were born in 1935 and 1954 and live in St Julian's and Tarxien (both in Malta) respectively.

The case concerns the applicants' complaints about the excessive length of proceedings and the lack of an effective remedy for that issue.

In 1983 they were accused of being involved in illegally importing alcohol into Malta and were ultimately found guilty in 1998 at second instance of various related charges. They were given suspended prison sentences of two years and fined.

They brought constitutional redress proceedings in 1999 to complain about the length of the criminal proceedings against them. In 2015 the first-instance court found that 16 years to decide on the criminal case against the applicants was excessively lengthy and that the court authorities and police officials had mainly been responsible for the delay. The Constitutional Court upheld these findings in 2016, but reduced the compensation originally awarded to 5,000 euros for each applicant.

Relying on Article 6 § 1 (right to a fair trial/hearing within a reasonable time) of the European Convention, the applicants complain that both the criminal and constitutional redress proceedings were excessively long, having spanned over 33 years in total. They also allege under Article 13 (right to an effective remedy) that the remedy for the length of the criminal proceedings could not be

considered effective as they had not been awarded sufficient compensation and it had lasted as long as the proceedings complained of.

[Marshall and Others v. Malta \(no. 79177/16\)](#)

The applicants in this case are Mary Marshall a Maltese national, born in 1924, Marie Christiane Ramsay Pergola, a British national born in 1948, and the estate of the late Marquis John Scicluna.

The case concerns complaints, among other things, of the ineffectiveness of constitutional redress proceedings, in relation to both a breach of their property rights and to the length of proceedings which had been upheld domestically.

The applicants own commercial property in Valletta whose lease was transferred to a Government-owned bank, the Bank of Valletta, in 1974 by operation of law. The applicants objected to the transfer as a breach of contract.

They began ordinary proceedings in 1989 to regain possession, which did not end until June 2010 when the Court of Appeal found that the ordinary courts were not the right forum to address the applicants' complaints.

In constitutional redress proceedings, which began in November 2010, the first-instance court found in February 2016 that there had been a violation of Article 6 of the Convention owing to the duration of the civil proceedings and a breach of Article 1 of Protocol No. 1 to the Convention owing to the derisory rent they had received, awarding the applicants one million euros. On appeal, the Constitutional Court upheld the first-instance judgment on the merits but reduced the compensation to EUR 25,000.

The applicants complain of a lack of redress under Article 1 of Protocol No. 1 (protection of property), of overly lengthy proceedings under Article 6 § 1 (hearing within a reasonable time), and of the absence of an effective remedy under Article 13 (right to an effective remedy) in conjunction with both provisions.

[Buturugă v. Romania \(no. 56867/15\)](#)

The applicant, Gina-Aurelia Buturugă, is a Romanian national who was born in 1970 and lives in Tulcea (Romania).

The case concerns allegations of domestic violence. The applicant also complains of a violation of the confidentiality of her correspondence, accusing her former husband of wrongfully consulting her emails on her computer.

In December 2013 Ms Buturugă lodged a complaint against her husband, alleging that she had been the victim of domestic violence. She alleged that he had threatened to kill her, and presented a medical certificate describing her injuries. The following month Ms Buturugă lodged a second complaint to the effect that she had received fresh threats and suffered further violence at her husband's hands aimed at inducing her to withdraw her first complaint. At the end of January 2014 the couple divorced.

In March 2014 Ms Buturugă requested an electronic search of the family computer, alleging that her former husband had wrongfully consulted her electronic accounts – including her Facebook account – and had copied her private conversations, documents and photos. Then in September 2014 Ms Buturugă lodged a third complaint of a breach of the confidentiality of her correspondence.

In February 2015 the prosecutor's office discontinued the case on the grounds that although Ms Buturugă's former husband had threatened to kill her, his behaviour had not been sufficiently serious to be designated as a criminal offence. It also decided to dismiss, as out of time, Ms Buturugă's complaint concerning the violation of the confidentiality of her correspondence. Finally, it imposed an administrative fine of some 250 euros (EUR) on the applicant's former husband. Ms

Buturugă unsuccessfully appealed to the prosecutor's office against the order issued by the prosecutor, before appealing to the court of first instance.

Furthermore, on 13 March 2014 the court of first instance issued Ms Buturugă with a protection order valid for months. She alleges that the police delayed the implementation of the order and that her former husband never complied with it. The Government point out that Ms Buturugă failed to apply for the renewal of the order after the first six months had elapsed.

Moreover, Ms Buturugă alleges that her former husband stalked her in the street on 29 October 2015. In that connection, the Government pointed out in its observations of July 2017 that criminal proceedings for harassment were pending.

Relying, in particular, on Article 3 (prohibition of torture and inhuman or degrading treatment) and Article 8 (right to respect for private and family life and correspondence), Ms Buturugă complains of the ineffectiveness of the criminal investigation into the domestic violence which she alleges she suffered. She complains that her personal safety was not adequately secured. She also criticises the authorities' refusal to consider her complaint concerning her former husband's breach of the confidentiality of her correspondence.

[Atamanchuk v. Russia \(no. 4493/11\)](#)

The applicant, Vladimir Atamanchuk, is a Russian national who was born in 1951 and lives in Sochi (Russia). He is a businessman and a local politician. He also owns a local newspaper (circulation of 8,000).

The case concerns his conviction for inciting hatred and enmity following statements about non-Russians in an article published in another local newspaper the day before the 2008 presidential election.

Headlining the March 2008 article "Why I will not vote in these elections", Mr Atamanchuk expressed his views on the notion of the "people", and made remarks about non-Russian groups' ethnic characteristics. He stated in particular that these groups were prone to crime, would "slaughter, rape, rob and enslave, in line with their barbaric ideas" and "participat[ed] in the destruction of the country".

He was convicted in July 2010 of inciting hatred and enmity and of debasing the human dignity of a person or group of people on account of their ethnicity, language, origin and religious beliefs. The domestic court essentially based its findings on reports drawn up by experts in linguistics and psychology who had analysed the article and concluded that it had incited readers to feel hatred towards the local population of non-Russian ethnicity, but did not call for violent action against them.

He was fined 200,000 Russian roubles (about 5,086 euros at the time) for the March 2008 article and the same amount for the subsequent reprinting of the article in his newspaper during the proceedings against him. He was also prohibited from exercising any journalistic or publishing activities for two years.

Mr Atamanchuk appealed, complaining that the trial court had refused to summon an expert on philology whose report had been mentioned among the evidence against him. The judgment was however upheld on appeal in September 2010, without ruling on this complaint.

Relying on Article 10 (freedom of expression), Mr Atamanchuk complains about his criminal conviction and sentence. Also relying on Article 6 §§ 1 and 3 (d) (right to a fair trial and right to obtain attendance and examination of witnesses), he complains that he had no opportunity to question the philology specialist.

Baykin and Others v. Russia (no. 45720/17)

The applicants, Stanislav Anatolyevich Baykin, and his parents Anatoliy Timpofeyevich Baykin and Larisa Nikolayevna Baykina, are Russian nationals who were born in 1982, 1942 and 1950 respectively.

The case concerns a threat to demolish a house located near an underground pipeline and to evict the occupants.

On 8 February 2014 the first applicant purchased a plot of land comprising a partially built house in the village of Safonovskoye. On 22 September 2014, having completed the construction of the house, he registered his property rights under a simplified procedure, consisting of submitting the document of title over the plot of land. His parents, the second and third applicants, moved into the house.

On 20 May 2015 the company which owned and operated the underground pipeline near the village sent the first applicant an order to demolish the house because the minimum permissible distance between the building and the pipeline had not been complied with. On 30 July 2015 the company instituted proceedings against the applicant, seeking a court order for the demolition of the house. The court ruled that the house, located at a distance of under 100 metres from the pipeline, was an unlawful building, and ordered its demolition at the applicant's expense. The first and second applicants appealed against the judgment. On appeal the Regional Court found that the "safety distances" had not been observed when the house had been built, and that it was therefore in breach of urban planning and building standards. The court ruled that the house was an unlawful building and ordered its demolition. All the applicants lodged appeals on points of law, unsuccessfully.

On 21 April 2017 the Civic Chamber, a public advisory body, noted that there were disputes concerning dwellings located near gas and oil pipelines in almost one third of all the Russian regions, giving rise to social tension and civic mistrust of the authorities. In the vast majority of cases the courts allowed the applications lodged by the companies operating the dangerous installations and ordered the demolition of the houses in question. The owners were generally awarded no compensation, an issue which diminished the efficacy of registering property rights in the central land register. In their observations of 19 April 2019, the Government informed the Court that Stanislav Baykin's title to the house had not been forfeited, and on 24 July 2019 the applicants informed the Court that their house had not been demolished.

The first applicant argues that the courts' designation of his house as an "unlawful building" and the demolition order amounted to an infringement of his right secured under Article 1 of Protocol No. 1 (protection of property). The second and third applicants consider their imminent eviction as a violation of Article 8 (right to respect for the home).

Vovk and Bogdanov v. Russia (no. 15613/10)

The applicants, Sergey Vovk and Artem Bogdanov, are Russian nationals who were born in 1995 and 2000 respectively and live in Chita (Russia).

The case concerns the authorities' alleged failure to conduct an effective investigation into the explosion of a grenade in a residential area of Chita in April 2008.

The applicants, 13 and seven years old at the time, were seriously injured in a district of Chita when a grenade fell on the ground and exploded while they were handling it. The police determined that the grenade was a VOG-17 30-mm projectile from an AGS-17 heavy grenade launcher which the second applicant had found near some garages next to a school.

The authorities initially carried out an enquiry aimed at verifying whether the first applicant had committed criminal acts of grievous bodily harm and damage by negligence, although he was too young to be prosecuted.

A parallel criminal investigation into how the grenade had come to be found in a residential area found in October 2008 that an unidentified person at an unidentified place had failed properly to carry out his or her duties of guarding firearms, ammunition and explosive devices, committing crimes under Article 225 § 1 and Article 348 (loss of military property) of the Criminal Code. That had resulted in the grenade, which had previously been fired through a grenade launcher but had not exploded, being transported in a load of sand to the district where the children had found it. A construction company dispatcher had earlier told investigators that sand had been picked up from a building site which was in a military district.

The civilian investigating authority, the Chernovskiy district police of Chita, forwarded the case to the Chita garrison military prosecutor of the Siberian Military Circuit. Nine days after being assigned the case, the Chita garrison military investigation division transferred it back to the Chernovskiy district police, stating that its pre-investigation inquiry showed no involvement of military personnel in the loss of the grenade.

The criminal investigation was suspended and resumed several times by the Chernovskiy district police between November 2008 and June 2011 as no perpetrator had been identified. It was closed definitively in December 2013 as the offences under investigation, on guarding firearms and explosives, had become time-barred.

In 2009 the applicants' mothers lost civil compensation claims against the Russian Federation Ministry of Finance and Chita police in which they argued that the State had failed to ensure the safety of the explosive device and had failed to identify and prosecute those responsible for it coming into civilian hands.

The applicants complain under Article 6 (right to a fair trial) and Article 13 (right to an effective remedy) that the State refused to pay compensation for the non-pecuniary damage caused by the explosion and that their civil claim was rejected because of the lack of a proper investigation.

[Özer v. Turkey \(no. 3\) \(no. 69270/12\)](#)

The applicant, Aziz Özer, is a Turkish national who was born in 1964 and lives in Istanbul (Turkey).

The case concerns criminal proceedings against Mr Özer, the owner and editor of the magazine *Yeni Dünya İçin Çağrı*, for the criminal offence of publishing propaganda in favour of a terrorist organisation in his magazine.

In 2007 the Istanbul prosecutor's office charged Mr Özer with disseminating propaganda in favour of a terrorist organisation on account of an article published in the January 2007 edition of his magazine. The following year the Istanbul Assize Court found him guilty of the offence and sentenced him to 15 months' imprisonment. The Assize Court considered in particular that some sections of the article, which had borne the title "*The Kurdish question, seeking a solution and our obligations*", had constituted propaganda for the PKK (the Kurdistan Workers' Party, an illegal armed organisation), and had corresponded not to the exercise of the right to freedom of expression but to a misuse of that freedom. In 2012 the Court of Cassation upheld that judgment. The same year, following the entry into force of Act No. 6352, Mr Özer was granted a three-year stay of execution of his sentence.

Relying on Article 10 (freedom of expression) of the Convention, Mr Özer complains of an infringement of his right to freedom of expression on account of the criminal proceedings brought against him.

Thursday 13 February 2020

[Ibrahimov and Mammadov v. Azerbaijan \(nos. 63571/16, 2890/17, 39541/17, 74143/16, 2883/17, and 39527/17\)](#)

The applicants, Giyas Hasan oglu Ibrahimov and Bayram Farman oglu Mammadov, are two Azerbaijani nationals who were born in 1994 and 1995 respectively and live in Baku.

The case concerns their complaints of police ill-treatment and detention based on drugs' charges after they painted protest graffiti on a statue of a former president.

Both applicants, members of the Nida civic movement, were arrested in May 2016, after they had sprayed graffiti on a statue of Heydar Aliyev, the former president of Azerbaijan, and had posted images of the graffiti on social media. The graffiti included the words "F ... ck the system" and "Happy slave day", a play on words with the phrase "Happy flower day", linked to commemorations of the former president's birthday.

According to the applicants, they were arrested by being seized in the street by men in plain clothes who punched and questioned them about painting graffiti on the statue. They were taken to the Baku Main Police Department, where police officers allegedly planted drugs on them and subjected them to ill-treatment in order to force them to confess to drugs charges. They initially refused to confess but did so after being ill-treated and threatened by the police.

They were subsequently taken to their apartments, where the police found drugs, which the applicants allege were also planted.

Both applicants were eventually taken to a temporary detention facility at the Narimanov District Police Office, where they were forced to clean the yard and were further beaten. Their lawyer witnessed the alleged ill-treatment and them sweeping the yard.

Both men were taken to Khatai District Court for a decision on the preventive measure to be applied pending their trial and they complained to the court about suffering ill-treatment and that their confessions had been made under duress. The court ordered the investigating authorities to examine their allegations of ill-treatment. On their return to the detention centre, the applicants were again subjected to ill-treatment.

In May 2016 the United Nations Working Group on Arbitrary Detention visited Azerbaijan and met the applicants, whom it described as bearing the "physical sequels" of ill-treatment.

The Government states that both applicants were arrested after the police had received information that they were involved in drug trafficking. They were provided with State-funded lawyers and were charged after evidence was found. They also had a medical examination at the police station and no injuries were found on them. The criminal investigation into their complaints of ill-treatment by the police concluded that their allegations were unfounded.

The applicants were remanded in custody pending trial, with the courts rejecting their appeals against their detention orders and their requests for release.

In October and December 2016 respectively the applicants were convicted of drugs offences and sentenced to 10-years' imprisonment. They were released under a presidential pardon in March 2019.

The applicants complain under Article 3 (prohibition of torture and of inhuman or degrading treatment) that they were ill-treated during their arrest and while in police custody and that the authorities failed to carry out an effective investigation. Under Article 5 § 1 (right to liberty and security), they submit that their arrest was not based on a reasonable suspicion, while under Article 5 and Article 6 (right to a fair trial) they allege that the courts failed to provide relevant and sufficient reasons to justify their pre-trial detention and that the review of their detention was ineffective.

Under Article 18 (limitation on use of restrictions on rights) in conjunction with Article 5, they complain that their right to liberty was restricted for purposes other than those set down in the Convention, namely in order to punish them for their graffiti with political slogans.

Lastly, they raise complaints under Article 10 (freedom of expression) and Article 8 (right to respect for private and home life), both alone and in conjunction with Article 18.

[Sanofi Pasteur v. France \(no. 25137/16\)](#)

The applicant is the Sanofi Pasteur limited company, a legal entity established under French law and based in Lyon.

The case concerns its liability to an individual, a trainee nurse who was vaccinated against hepatitis B and subsequently contracted various illnesses, and the court order against the applicant company to pay damages.

In her capacity as a trainee nurse, X, who was born in 1972, had to be vaccinated against hepatitis B. In 1993 she was diagnosed with multiple sclerosis; in 1999 with Crohn's disease; and in 2004, with polymyositis.

In 2002 X filed an action for damages against the State with the administrative court, which action was allowed. The State was ordered to pay her EUR 656,803.83 in compensation for the bodily harm which she had sustained, and to pay her an annual pension of EUR 10,950.

In 2005 X brought civil proceedings against Sanofi Pasteur, seeking compensation on account of the worsening of the bodily harm for which she had been awarded damages. The action was declared admissible by the Toulouse Regional Court and then the Toulouse Court of Appeal, starting the 10-year limitation period for actions on the date the condition had stabilised. Sanofi Pasteur was found liable for the harm sustained by X. Noting that the administrative court had ordered the State to pay compensation for the bodily harm, the civil court commissioned an expert assessment aimed, in particular, at ascertaining whether the victim's current condition pointed to a worsening of the harm already compensated.

The applicant company appealed on points of law. It complained that the Court of Appeal had started the limitation period on the date the condition had stabilised, whereas X's pathology could not in fact stabilise, which meant that her action was not subject to statutory limitation. The applicant company, in the alternative, invited the Court of Cassation to transmit requests for a preliminary ruling to the Court of Justice of the European Union. The first two questions proposed concerned Article 4 of Directive 85/374, which lays down that the victim must prove the damage, the defect and the causal relationship between defect and damage.

The first civil division of the Court of Cassation dismissed the appeals on points of law.

On 17 November 2015, in the light of the expert assessment, the Toulouse Regional Court ordered the applicant company to pay X the following amounts: EUR 8,050 in respect of the permanent functional deficiency, EUR 1,500 in respect of the suffering endured and the disfigurement, an annual pension of EUR 5,475 for the assistance of a third person, and EUR 2,000 in respect of procedural costs.

Relying, in particular, on Article 6 § 1 (right to a fair trial), the applicant company alleges that the fact of starting the limitation period for X's action on the date her condition stabilised meant that her action was not subject to statutory limitation, given that the pathology underlying her condition could not stabilise. The applicant company also complains of the fact that the Court of Cassation dismissed its request for preliminary rulings from the CJEU, without providing reasons. Finally, relying on Article 6 § 1 and Article 1 of Protocol No. 1, the applicant company complains that the finding against it was based on the dual presumption of a causal link between the vaccination and X's illnesses and of the defectiveness of the vaccine.

Trajkovski and Chipovski v. North Macedonia (nos. 53205/13 and 63320/13)

The case essentially concerns the retention of DNA data of convicted persons.

The applicants, Jovche Trajkovski and Dimitar Chipovski, are two Macedonians/citizens of North Macedonia who were born in 1982 and 1979 respectively and live in Skopje.

The applicants had DNA samples taken from them in the context of criminal proceedings brought against them in 2009 and 2010. They were subsequently convicted of aggravated theft and given suspended sentences. Mr Trajkovski's conviction was based on his DNA profile, while in Mr Chipovski's case his DNA make-up was not used as evidence against him.

They both filed complaints with the Personal Data Protection Directorate, arguing that the police had violated their privacy rights by taking and retaining their DNA. The Directorate dismissed their complaints, finding that the police were authorised by domestic law to collect, process and store an individual's personal data when there was a reasonable suspicion that he or she had committed a crime.

The applicants challenged these decisions before the administrative courts, but their complaints were dismissed on similar grounds in 2013.

Relying on Article 8 (right to respect for private and family life), the applicants allege that there is no legislative framework clearly regulating the taking, use, processing, storing and deletion of DNA material in North Macedonia. They complain in particular that the purposes for which DNA samples can be taken and profiles stored are couched in too broad terms and that the relevant provisions under national law do not specify how long DNA material can be retained in respect of convicted persons such as themselves.

Gaughran v. the United Kingdom (no. 45245/15)

The case concerns the indefinite retention of the personal data of a man convicted of an offence punishable by imprisonment, known as a recordable offence.

The applicant, Fergus Gaughran, is a British national who was born in 1972 and lives in Newry (Northern Ireland, United Kingdom).

Mr Gaughran was arrested in October 2008 for driving with excess alcohol (a "recordable offence"). He was taken to the police station where he provided a breath sample, which came up positive. The police also took his photograph, fingerprints and a DNA sample. He later pleaded guilty, was given a fine and banned from driving for 12 months. His conviction was spent in 2013.

His DNA sample was destroyed in 2015 at his request. The Police Service of Northern Ireland ("the PSNI") continue to retain indefinitely the DNA profile extracted from his DNA sample, his fingerprints and photograph.

He unsuccessfully challenged the PSNI's continued retention of his data in the domestic courts, up to the Supreme Court, which found that the measure interfered with his privacy rights but was justified and proportionate.

Relying on Article 8 (right to respect for private and family life), Mr Gaughran complains about the police indefinitely retaining his DNA profile, fingerprints and photograph without any possibility of meaningful review, in accordance with the relevant provisions for the indefinite retention of personal data of any individual convicted of a recordable offence.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 11 February 2020

Name	Main application number
Bucha and Others v. Russia	46354/11
Shmatova and Others v. Russia	36539/08

Thursday 13 February 2020

Name	Main application number
F.L.V. v. Belgium	25942/12
Klopcovs v. Latvia	26902/13
Butkus v. Lithuania	48460/16
Mătăsar v. the Republic of Moldova	44743/08
Naumov v. Russia	11617/10
Tokarev v. Ukraine	44252/13

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.